

ORLANDO TRAVELS INC.

VEHICLE RENTAL AGREEMENT

Terms and Conditions

THIS AGREEMENT CONTAINS A BINDING ARBITRATION CLAUSE AND JURY TRIAL WAIVER IN SECTION 10. PLEASE READ THIS AGREEMENT IN FULL BEFORE SIGNING.

RENTAL INFORMATION

Company: Orlando Travels Inc.

Renter Name: _____ **Driver's License No.:** _____

License State: _____ **License Expiration:** _____ **Date of Birth:** _____

Address: _____

Phone: _____ **Email:** _____

Vehicle: _____ **Year/Make/Model:** _____

License Plate: _____ **VIN:** _____

Rental Start Date/Time: _____ **Odometer Out:** _____

Designated Return Date/Time: _____ **Fuel Level Out:** _____

Daily Rate: \$ _____ **Mileage Cap:** _____ miles/day **Overage Rate:** \$ _____ /mile

Additional Driver Fee: \$ _____ /day per driver

Deposit Held: \$ _____ **Payment Method:** _____

Cancellation Policy: Free cancellation if cancelled 48 or more hours before scheduled pickup. If cancelled less than 48 hours before scheduled pickup: \$ _____ cancellation fee.

RENTER'S AUTOMOBILE INSURANCE INFORMATION

Insurance Company: _____

Policy No.: _____

Policy Expiration Date: _____ **Liability Limits: \$** _____

Covers Rental Vehicles: ☐ Yes ☐ No ☐ Unknown

By providing insurance information above, Renter represents that the policy identified is currently in force, that Renter has verified it covers the rental vehicle and intended use, and that Renter understands this Company provides no liability insurance to Renter. Renter is personally responsible for all damage to and loss of the Vehicle.

AGREEMENT

These Vehicle Rental Terms and Conditions (this “Agreement”) govern the rental of the vehicle described above (the “Vehicle”) by Orlando Travels Inc. (“Company,” “we,” “us,” or “our”) to the person identified as Renter above (“you” or “Renter”). By signing this Agreement, you agree to all terms and conditions set forth herein. Failure to comply with this Agreement constitutes a breach, and the Company may exercise all remedies available at law or in equity, including immediate termination of the rental, repossession of the Vehicle, and assertion of claims against you.

This Agreement applies to the Vehicle described above and to any replacement vehicle the Company provides to you in connection with this rental. “Vehicle” includes the vehicle itself, tires, keys, key fobs, accessories, registration documents, and any other property delivered with the Vehicle.

1. AUTHORIZED DRIVERS AND LICENSE REQUIREMENTS

1.1 Only you may operate the Vehicle, except as provided in this Section. You represent that your driver’s license is valid, current, unrestricted, and not suspended, revoked, or modified. Digital or temporary licenses are not acceptable. You authorize the Company to verify your license and identity before releasing the Vehicle and at any time during the rental.

1.2 An additional driver may operate the Vehicle only if (i) that person is your spouse or domestic partner, or (ii) that person is listed as an Authorized Driver on this Agreement with the Company’s prior written consent. All Authorized Drivers must be at least 25 years of age and hold a valid, unrestricted driver’s license. A fee of \$_____ per day will be charged for each additional Authorized Driver. The additional driver must be listed on the face of this Agreement. You remain financially responsible under this Agreement regardless of whether the Vehicle is operated by you, an Authorized Driver, or any other person.

1.3 You will not permit any person other than an Authorized Driver to operate the Vehicle under any circumstances. Allowing an unauthorized person to operate the Vehicle is an automatic breach of this Agreement and voids all liability protections.

2. VEHICLE USE — OBLIGATIONS

2.1 Safe Operation. You and any Authorized Driver must operate and park the Vehicle in compliance with all applicable laws, regulations, and ordinances, including all Florida traffic laws. You must use all required passenger safety restraints and child safety seats as required by Florida law. You must not use a mobile phone or any handheld device while operating the Vehicle unless in fully hands-free mode.

2.2 Vehicle Security. You may not leave the Vehicle unattended unless all windows, doors, and the trunk or cargo area are closed and locked, and the Vehicle is in a lawful, secure parking location. You must take reasonable precautions to safeguard the keys and key fobs at all times.

2.3 No Smoking or Vaping. No person may smoke, vape, or use any tobacco, cannabis, or similar substance inside or immediately adjacent to the Vehicle. If the Company determines, in its sole discretion, that the Vehicle has been exposed to smoke, vapor, or related odors, a cleaning fee of up to \$350.00 will be assessed in addition to any other applicable charges.

2.4 Condition and Care. You must return the Vehicle in the same condition you received it, ordinary wear and tear excepted. You are responsible for checking tire pressure, fluid levels, and warning indicators during the rental and promptly reporting any warning lights or mechanical issues to the Company.

2.5 Pre-Rental Inspection Acknowledgment. You acknowledge that you have personally inspected the Vehicle prior to taking possession and that it was received in the condition noted on the attached Vehicle Condition Report and accompanying photographs, both of which are incorporated into and made part of this Agreement. You agree that any new damage discovered upon return that is not documented as pre-existing on the Vehicle Condition Report, ordinary wear and tear excepted, is your responsibility and shall be charged to you as provided in Section 7. Your signature on this Agreement and on the Vehicle Condition Report constitutes your acceptance of the Vehicle's condition as documented.

3. PROHIBITED USES

ANY VIOLATION OF THIS SECTION CONSTITUTES AUTOMATIC BREACH OF THIS AGREEMENT ENTITLES THE COMPANY TO DEMAND IMMEDIATE RETURN OF THE VEHICLE AND TO EXERCISE ALL AVAILABLE LEGAL REMEDIES. You and any person you allow to possess or operate the Vehicle are prohibited from:

- Operating the Vehicle while under the influence of alcohol, drugs, or any impairing substance;
- Using the Vehicle to carry passengers or property for hire, including but not limited to rideshare, delivery, or shuttle services, unless expressly authorized in writing by the Company;
- Towing, pushing, or pulling any other vehicle, trailer, or object;
- Driving on unpaved, off-road, or restricted-access surfaces;
- Using the Vehicle in any race, contest, test, or competitive event;
- Transporting hazardous materials, contraband, or controlled substances;
- Operating the Vehicle recklessly, negligently, or while overloaded beyond its rated capacity;
- Using the Vehicle in connection with any act that could constitute a felony or misdemeanor under Florida or federal law;
- Subletting, re-renting, or otherwise allowing any unauthorized person to use the Vehicle;
- Operating the Vehicle outside the continental United States without prior written consent of the Company;
- or
- Intentionally or with willful disregard causing or allowing damage to the Vehicle.

4. RETURN OF VEHICLE

4.1 When to Return. You must return the Vehicle to the Designated Return Location on or before the Designated Return Date and Time stated on the face of this Agreement. You must return it sooner upon demand by the Company. Returning the Vehicle earlier than the agreed date does not entitle you to a refund of pre-paid rental charges unless otherwise agreed in writing.

4.2 Extensions. If you wish to extend the rental period, you must contact the Company prior to the Designated Return Time. Extensions are granted in the Company's sole discretion. If an extension is granted, a different or higher rate and an extension fee may apply. Retaining the Vehicle beyond the Designated Return Time without an approved extension constitutes a breach of this Agreement.

4.3 After-Hours Returns. You may not return the Vehicle when the Company's location is closed. If you return the Vehicle when the location is closed, the Vehicle will not be deemed returned until the Company opens, physically inspects and takes possession of the Vehicle, and documents its condition during regular business hours. You remain fully responsible for all charges, damage, theft, or loss until the Company physically inspects and takes possession of the Vehicle during business hours, regardless of when you deposited the keys or parked the Vehicle at the return location.

4.4 Condition on Return. The Vehicle must be returned with the same fuel level as at pickup (full-to-full policy), with all keys and accessories received, and free of new damage. Any damage, missing items, or fuel deficiency will be charged to you as provided in this Agreement.

4.5 Cancellation Policy. Cancellations made 48 or more hours prior to the scheduled pickup time will receive a full refund of any prepaid rental charges at no charge. Cancellations made less than 48 hours prior to the scheduled pickup time will be subject to a cancellation fee in the amount stated on the face of this Agreement, which will be deducted from any prepaid amount. The Company reserves the right to modify cancellation terms for specific vehicles, holidays, or high-demand periods, in which case the modified terms will be stated on the face of this Agreement or in a separate written confirmation provided at the time of reservation.

5. FAILURE TO RETURN — FLORIDA CRIMINAL STATUTE NOTICE

NOTICE PURSUANT TO FLORIDA STATUTE § 812.155: FAILURE TO RETURN RENTAL PROPERTY OR EQUIPMENT UPON EXPIRATION OF THE RENTAL PERIOD AND FAILURE TO PAY ALL AMOUNTS DUE (INCLUDING COSTS FOR DAMAGE TO THE PROPERTY) ARE EVIDENCE OF ABANDONMENT OR REFUSAL TO REDELIVER THE PROPERTY AND ARE PUNISHABLE AS A CRIMINAL OFFENSE UNDER FLORIDA LAW. DEPENDING ON THE VALUE OF THE VEHICLE, THIS OFFENSE MAY CONSTITUTE A FELONY. THE COMPANY WILL REPORT UNRETURNED VEHICLES TO LAW ENFORCEMENT.

5.1 If you fail to return the Vehicle at the Designated Return Time and Location, and have not obtained an approved extension, the Company may, in its sole discretion and subject to applicable law, treat your failure to return the Vehicle as a theft or other unlawful taking and report the Vehicle as stolen to law enforcement. Payment of rental charges by any payment method does not waive the Company's right to report the Vehicle as stolen.

5.2 The Company may use GPS tracking, telematics, remote vehicle disabling, or any other available means to locate, recover, or disable the Vehicle if it is not returned as required. You agree to pay all costs reasonably incurred by the Company in recovering the Vehicle, including towing, storage, and legal fees.

5.3 Repossession. The Company may, in its sole discretion and without prior notice to you, repossess the Vehicle at any time if: (i) the Vehicle is illegally parked or is being operated in violation of this Agreement; (ii) the Vehicle appears to be abandoned; (iii) you have failed to return the Vehicle by the Designated Return Time without an approved extension; or (iv) the Company determines in good faith that the Vehicle is at risk of damage, loss, or misuse. You authorize the Company to use any and all available means to locate and recover the Vehicle, including but not limited to GPS tracking, remote engine disabling, and direct physical repossession. You agree to pay all reasonable recovery costs incurred by the Company, including towing fees, storage fees, and any administrative charges. The Company's exercise of its repossession rights does not waive any other remedy available under this Agreement or applicable law.

6. CHARGES AND PAYMENT

6.1 Daily Rate and Mileage. You will pay the daily rate stated on the face of this Agreement for each day or part of any day of the rental. The minimum charge is one full day. If a mileage cap applies, you will pay the per-mile overage rate for each mile driven in excess of the daily cap, as stated on the face of this Agreement.

6.2 Fuel. The Vehicle will be provided with a full tank of fuel. You must return the Vehicle with a full tank. If the Vehicle is returned with less fuel than at pickup, you will be charged a fuel service fee equal to the Company's then-current per-gallon rate, which may exceed retail pump prices, plus a refueling service charge. You may avoid this charge by returning the Vehicle with a full tank and presenting a fuel receipt upon request.

6.3 Late Return Fee. If you do not return the Vehicle by the Designated Return Time, you will be charged the applicable daily rate for each additional day or partial day, plus a late return fee as stated on the face of this Agreement.

6.4 Cleaning Fee. You will pay a reasonable cleaning fee, not to exceed \$350.00, if the Vehicle is returned with excessive stains, trash, pet hair, odors, or evidence of smoking or vaping. Standard cleaning is included in the rental rate; the cleaning fee applies only to cleaning beyond ordinary use.

6.5 Key and Accessory Replacement. You must return all keys, key fobs, remotes, and accessories provided at the time of rental. Failure to return any item will result in a charge equal to the Company's actual replacement cost for that item.

6.6 Fines, Tickets, and Violations. You are responsible for all parking citations, traffic violations, toll charges, red-light camera fines, and any other governmental assessments arising from your operation of the Vehicle during the rental period. If any such fines are assessed against the Company or the Vehicle, you authorize the Company to pay them on your behalf and charge you for the amount paid plus a reasonable administrative fee not to exceed \$50.00 per violation. You are encouraged to pay all fines promptly and provide proof of payment to the Company.

6.7 Tolls. You are responsible for all tolls incurred during the rental. If the Vehicle is equipped with a transponder or SunPass device, any tolls processed through that device will be charged to you at the rate posted by the applicable toll authority, plus a convenience fee of \$5.95 per day on which a toll is incurred, up to a maximum of \$29.75 per rental period. You may avoid this fee by using your own compatible, funded transponder device or by paying cash at toll plazas where available.

6.8 Taxes. You will pay all applicable federal, state, and local taxes, surcharges, and fees associated with the rental, including Florida sales tax on vehicle rentals and any applicable local discretionary surtax.

6.9 Deposit and Payment Authorization. A deposit in the amount stated on the face of this Agreement will be held against your payment method at the time of rental. You authorize the Company to charge your payment card or other payment method for all charges arising under this Agreement, including charges assessed after the Vehicle is returned, such as damage claims, fuel fees, fines, and any other amounts due hereunder. All charges are subject to final determination after return of the Vehicle. The total charges may be higher or lower than estimated at the time of rental.

6.10 Collections. Unpaid amounts that are not paid within fourteen (14) days of demand will accrue interest at the rate of 1.5% per month (or the maximum rate permitted by Florida law, whichever is less). You agree to pay all reasonable costs of collection, including court costs and attorneys' fees.

7. DAMAGE, LOSS, AND LIABILITY

7.1 Renter Responsibility. You are responsible for all loss of or damage to the Vehicle regardless of cause, including acts of nature, third-party damage, and regardless of fault or who caused the damage. You will pay the lesser of

the Company's estimated repair cost or the fair market retail value of the Vehicle if damage is so severe that repair is not economical.

7.2 Loss of Use. You are responsible for the Company's Loss of Use of the Vehicle while it is being repaired or replaced following damage or loss caused during your rental. Loss of Use is calculated at the applicable daily rental rate multiplied by the number of days the Vehicle is out of service for repair or replacement, not to exceed thirty (30) days.

7.3 Diminished Value. You are also responsible for Diminished Value of the Vehicle, defined as the reduction in the Vehicle's fair market value caused by the accident and repair, to the maximum extent permitted by Florida law, even if the repair has been fully completed. Diminished value is a separate and recoverable element of the Company's damages, distinct from repair costs and loss of use.

7.4 No Unauthorized Repairs. You are not authorized to repair the Vehicle or authorize repairs by any third party without the Company's prior written consent. Unauthorized repairs do not relieve you of liability, and you will pay all costs the Company reasonably incurs to restore the Vehicle to its pre-rental condition.

7.5 Florida Liability Framework. Pursuant to § 324.021(7), Florida Statutes, the valid and collectible liability insurance and personal injury protection insurance of any authorized rental driver is primary for the limits of liability and personal injury protection coverage required by Florida law. The Company does not provide liability insurance to renters. You are responsible for maintaining your own automobile insurance coverage sufficient to cover your liability while operating the Vehicle. The Company strongly recommends that you verify your coverage before renting.

7.6 Insurance Disclosure. The Company is not an insurance company and does not provide liability coverage, bodily injury coverage, or personal injury protection to you or any other occupant of the Vehicle. Your personal or commercial auto insurance policy is your primary source of coverage.

9. ACCIDENTS AND INCIDENTS

9.1 Reporting Requirement. You must immediately report to the Company any accident, collision, theft, vandalism, or damage involving the Vehicle, regardless of severity, as soon as it is safely and reasonably possible. You must call the Company at: _____. You must also file a police report as required by Florida law, and provide the Company with a copy of that report within 48 hours.

9.2 Cooperation. You agree to cooperate fully with the Company's investigation of any incident, including providing written statements, photographs, witness information, and any other information the Company reasonably requests. Failure to cooperate is a breach of this Agreement.

9.3 No Admissions. You may not admit liability or make any payment, offer of settlement, or other commitment on behalf of the Company in connection with any accident or incident without the Company's prior written consent.

9.4 Insurance Assignment. If your responsibility for damage or loss is covered by any insurance policy, credit card benefit, or other coverage, you authorize the Company to contact your insurer or benefit provider on your behalf and to share information provided in this Agreement. You assign to the Company all rights and benefits under any applicable coverage to the extent necessary to recover the Company's damages.

9. DISPUTE RESOLUTION AND ARBITRATION

9.1 Pre-Dispute Notice. Before initiating any legal proceeding, the party asserting a claim must provide the other party with written notice of the claim at least thirty (30) days in advance and make a good faith effort to resolve the dispute informally during that period.

9.2 Binding Arbitration. Except as provided in Section 9.4, all disputes between you and the Company arising out of or relating to this Agreement or your rental of the Vehicle shall be resolved exclusively by binding arbitration administered by the American Arbitration Association ("AAA") under its then-current Commercial Arbitration Rules. The arbitration shall take place in Orange County, Florida. The arbitrator's decision shall be final and may be entered as a judgment in any court of competent jurisdiction.

9.3 JURY TRIAL WAIVER. BY SIGNING THIS AGREEMENT, YOU AND THE COMPANY EACH WAIVE THE RIGHT TO A TRIAL BY JURY WITH RESPECT TO ANY DISPUTE ARISING OUT OF THIS AGREEMENT OR YOUR RENTAL.

9.4 Exceptions. The following disputes are exempt from mandatory arbitration and may be brought in any court of competent jurisdiction: (i) claims within the jurisdiction of Florida small claims court; and (ii) claims for injunctive or emergency relief to prevent immediate harm.

9.5 Governing Law. This Agreement shall be governed by and construed in accordance with the laws of the State of Florida, without regard to its conflict of laws principles. Any arbitration or court proceeding shall be venued in Orange County, Florida.

10. GPS TRACKING AND VEHICLE MONITORING

10.1 You acknowledge and consent to the fact that the Vehicle may be equipped with GPS tracking devices or other telematics systems capable of recording and transmitting real-time location data, speed, mileage, and other operational information.

10.2 You consent to the Company's use of this data for purposes including but not limited to: fleet management, verification of Vehicle location and use, recovery of overdue or stolen Vehicles, verification of mileage and fuel usage, and provision of information to law enforcement as required or permitted by law.

10.3 You have no expectation of privacy with respect to the geographic location or operation of the Vehicle during the rental period.

11. INDEMNIFICATION

Except where prohibited by applicable law, you agree to defend, indemnify, and hold harmless Orlando Travels Inc., its owners, officers, employees, and agents from and against any and all losses, liabilities, damages, claims, demands, costs, and expenses (including reasonable attorneys' fees) arising out of or related to: (i) your use or operation of the Vehicle; (ii) any breach of this Agreement; (iii) any accident, injury, or property damage occurring during the rental period; or (iv) the operation of the Vehicle by any Authorized Driver or any other person you permitted to use the Vehicle. You shall notify the Company promptly of any claim for which indemnification is sought and shall cooperate fully in the defense thereof.

12. MISCELLANEOUS PROVISIONS

12.1 Nature of Agreement. This Agreement grants you a limited, non-transferable license to use the Vehicle subject to the terms herein. It does not transfer any ownership interest in the Vehicle. You may not assign, transfer, or sublet your rights under this Agreement.

12.2 Limitation of Damages. You waive any claim against the Company for incidental, special, or consequential damages in connection with this rental. If a court finds the Company has breached this Agreement, your damages shall not exceed the actual rental charges paid by you under this Agreement.

12.3 Modifications. No modification of this Agreement is effective unless made in writing and signed by an authorized representative of the Company.

12.4 Severability. If any provision of this Agreement is held invalid or unenforceable, the remaining provisions shall remain in full force and effect.

12.5 Entire Agreement. This Agreement constitutes the entire agreement between the parties with respect to the rental of the Vehicle and supersedes all prior agreements, representations, and understandings, whether written or oral. This Agreement may be executed electronically, and electronic signatures shall be deemed original signatures and shall be fully binding on the parties to the same extent as a handwritten signature.

12.6 Waiver. The Company's failure to enforce any provision of this Agreement shall not constitute a waiver of its right to enforce that provision in the future.

12.7 Contact. For rental extensions, incidents, or emergencies, contact the Company at:
_____ (Phone / Email).

12.8 Force Majeure. Neither party shall be liable for any delay or failure to perform its obligations under this Agreement to the extent such delay or failure is caused by events beyond that party's reasonable control, including but not limited to hurricanes, tropical storms, floods, other acts of God or nature, government orders, mandatory evacuations, acts of war or terrorism, or widespread infrastructure failure. In the event of a declared state of emergency by the Governor of Florida or applicable local authority affecting the rental area, the Company will make reasonable efforts to accommodate rescheduling or extension of the rental without penalty. This provision does not excuse the Renter from liability for damage to the Vehicle or from payment of rental charges already accrued prior to the force majeure event.

13. ELECTRIC AND SPECIAL VEHICLE PROVISIONS

13.1 Applicability. This Section applies only if the Vehicle rented is an electric vehicle ("EV") or a hybrid vehicle. If the Vehicle is not an EV or hybrid, this Section does not apply.

13.2 Battery Return Level. You must return an EV with a battery charge level of at least 70%. You may recharge the EV at public or private charging stations at your own expense during the rental. If the EV is returned with a battery charge level below 70% but above 10%, a charging fee of \$35.00 will be assessed. If the EV is returned with a battery charge level below 10%, an additional low-charge fee of \$35.00 will be assessed, for a total charging fee of \$70.00. These fees are in addition to any other applicable charges.

13.3 No Automatic Carwashes for Tesla EVs. If the Vehicle is a Tesla, it may not be washed at an automatic carwash under any circumstances. Any damage to or loss of a Tesla EV caused by an automatic carwash shall be assessed against you as provided in Section 7.

13.4 No Unauthorized Software Updates. You are not authorized to install, initiate, or approve any software update on any EV during the rental period. If a software update prompt appears, disregard it or press “cancel.” Unauthorized software updates are performed at your risk, and you will be liable for any resulting loss of use, incompatibility, or expense incurred by the Company in restoring the EV to operation.

13.5 EV Equipment. All EV equipment provided with the Vehicle, including but not limited to charging cables, adapters, and key cards, must be returned. The full replacement cost of any EV equipment not returned will be charged to you.

13.6 Roadside Assistance for EVs. Running out of battery charge is not a covered roadside event. If the EV becomes inoperable due to a depleted battery, the vehicle will be towed at your expense pursuant to Section 6.5.

14. REQUIRED FLORIDA DISCLOSURES

14.1 Return of Vehicle — Florida Statute § 812.155. Failure to return rental property upon expiration of the rental period and failure to pay all amounts due are evidence of abandonment or refusal to redeliver the property, punishable in accordance with § 812.155, Florida Statutes. Depending on the value of the vehicle, this offense may be charged as a felony under Florida law.

14.2 Primary Insurance — Florida Statutes §§ 324.021(7) and 627.736. The valid and collectible liability insurance and personal injury protection insurance of any authorized rental or leasing driver is primary for the limits of liability and personal injury protection coverage required by Florida law.

ACKNOWLEDGMENT AND SIGNATURES

By signing below, Renter acknowledges having read and understood this entire Agreement, having had the opportunity to ask questions, and having received a copy of this Agreement. No guarantees have been made regarding any aspect of the rental beyond those expressly stated herein.

RENTER:

Renter Signature

Print Name

Date

AUTHORIZED DRIVER (if applicable):

Authorized Driver Signature

Print Name

Date

ORLANDO TRAVELS INC.:

Company Representative Signature

Print Name & Title

Date